‘Trump-proof’ state law: California Gov to begin special session to protect state's liberal policies

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California lawmakers convened a special session Monday, focusing on protecting state policies in anticipation of legal challenges from the incoming Trump administration. Gov. Gavin Newsom and his Democratic allies, who hold supermajorities in the legislature, plan to bolster funding for the state attorney general's office.

Assembly member Jesse Gabriel introduced legislation to allocate $25 million for legal costs related to potential federal challenges to California's policies on civil rights, climate change, immigration, and abortion access. “While we always hope to collaborate with our federal partners, California will be ready to vigorously defend our interests and values from any unlawful action by the incoming Trump Administration,” Gabriel said.

Gov. Newsom, a frequent critic of President-elect Trump, stated, “We’re not going to be caught flat-footed.” California sued the Trump administration over 120 times during his first term. The state anticipates similar conflicts during Trump’s second term, particularly regarding immigration, environmental regulations, and healthcare.

Trump has frequently criticized California's policies, often citing immigration and homelessness. He has also targeted the state's environmental regulations, including those related to water rights and endangered species. Republican lawmakers have criticized the special session, urging cooperation with the incoming administration. Rep. Vince Fong said, “Gavin Newsom’s actions are tone-deaf to the concerns of Californians who disapprove of the direction of our state and country.”

The special session coincides with the swearing-in of new legislators and the election of legislative leaders. Hundreds of protesters marched at the Capitol on Monday to urge action against potential mass deportations. Attorney General Rob Bonta affirmed his commitment to protecting California's immigrant population. Newsom also proposed reviving an electric vehicle rebate program if the federal tax credit is eliminated.

California faces a projected $2 billion budget deficit next year. Gabriel, who chairs the budget committee, called the legal funding "a wise investment," citing past successes in reclaiming funds through litigation against the Trump administration. He added, "We are positioned, if necessary, to be the tip of the spear of the resistance and to push back against any unlawful or unconstitutional actions by the Trump administration."

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